

EMPLOYMENT SEPARATION AGREEMENT AND RELEASE

NOTICE: BECAUSE EXECUTION OF THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE WILL AFFECT YOUR LEGAL RIGHTS, YOU SHOULD THOROUGHLY REVIEW AND UNDERSTAND THE TERMS, CONDITIONS AND EFFECT OF THIS AGREEMENT. YOU HAVE THE RIGHT TO CONSIDER THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE FOR TWENTY-ONE (21) CALENDAR DAYS AND TO CONSULT WITH AN ATTORNEY BEFORE YOU SIGN IT. HOWEVER, YOU MAY SIGN THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE PRIOR TO THE END OF THAT PERIOD. IF YOU DO NOT SIGN THE EMPLOYMENT SEPARATION AGREEMENT AND RELEASE WITHIN THE TWENTY-ONE (21) CALENDAR DAY TIMEFRAME, THE OFFER FROM THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HTS CITY SCHOOL DISTRICT, I.E., THE PROPOSED TERMS AS SET FORTH BELOW, SHALL EXPIRE. UPON SIGNING THIS EMPLOYMENT SEPARATION AGREEMENT AND RELEASE, YOU WILL BE BOUND LEGALLY TO THE TERMS SET FORTH BELOW. FINALLY, YOU HAVE SEVEN (7) DAYS AFTER SIGNING THE EMPLOYMENT SEPARATION AGREEMENT AND RELEASE TO REVOKE IT, IN WHICH CASE IT WILL NOT BE BINDING UPON YOU OR THE BOARD OF EDUCATION OF THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT.

This Employment Separation Agreement and Release (the "Agreement") is entered into this ___ day of May, 2022, by and between Kimberly Taylor ("Ms. Taylor"), the Brecksville-Broadview Heights Education Association (the "Association"), an affiliate of the National Education Association and the Ohio Education Association, and the Board of Education of the Brecksville-Broadview Heights City School District (the "Board").

WHEREAS, Ms. Taylor, the Association, and the Board, in furtherance of their respective interests, have determined to sever the existing employment relationship between Ms. Taylor and the Board;

WHEREAS, Ms. Taylor has opted to resign from her current contract with the Board as teacher, along with any and all other contracts she holds with the Board, including supplemental contracts with the Board, effective as of August 31, 2023;

WHEREAS, the Parties recognize that the conclusion of any employment relationship may give rise to dispute, and they therefore wish to amicably resolve any and all issues that may otherwise exist between them and have determined that a release of claims is necessary to effectuate this goal.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, Ms. Taylor, the Association, and the Board agree as follows:

1. In consideration of Ms. Taylor's acceptance of this Agreement, Ms. Taylor shall resign from any and all contracts with the Board, including but not limited to any continuing,

administrative or supplemental contracts, which shall be deemed effective as of August 31, 2023. Pursuant to this Agreement and concurrent with its execution, Ms. Taylor shall submit a binding and irrevocable letter indicating her intent to resign, which is **Exhibit A** attached hereto and incorporated herein by reference, indicating an effective date of August 31, 2023, (the "Separation Date"). Ms. Taylor shall immediately tender her binding and irrevocable resignation for purposes of retirement to the Superintendent, who shall accept it upon receipt. In consideration for the mutual commitments herein, the Board shall receive and vote upon the acceptance of Ms. Taylor's resignation, which shall be deemed effective as of August 31, 2023, though the Board will vote upon the acceptance of the Agreement before its effective date. The Parties agree that pursuant to this resignation, Ms. Taylor expressly waives any and all rights, whether under Board policy, contract or Ohio law, including any continuing contract rights, to any position of employment with the Board including any teaching, administrative or supplemental position subsequent to August 31, 2023.

2. The Board agrees that Ms. Taylor will remain in paid status through August 31, 2023, consistent with the terms of said current contract and pursuant to standard payroll practices. During this time period, Ms. Taylor and the Association agrees that:
 - Ms. Taylor will continue to provide supporting notes for current designated students for the remainder of her remote assignment for the duration of the 2021-2022 school year and remain available during normal business hours for that period for additional work assignments as determined by the administration.
 - Ms. Taylor will be assigned to work remotely during the entirety of the 2022-2023 school year.
 - Ms. Taylor will be responsible to act as case manager for all K-12 IEP students attending out-of-district placements; i.e., will write all IEPs, organize and attend meetings, ensure completion, review, and maintenance of necessary documents, etc.; however, Ms. Taylor will not be engaged for any duties involving classroom instruction or student supervision.
 - Ms. Taylor will also continue to provide supporting notes for designated students for the remainder of her remote assignment for the duration of the 2022-2023 school year.
 - Ms. Taylor will participate in training regarding IEP writing.
 - Ms. Taylor waives her entitlement to IEP writing days.
 - Ms. Taylor waives all rights to grieve class size and/or case load issues for the duration of her employment.
 - Ms. Taylor will be reimbursed for authorized travel and other miscellaneous expenses (e.g. tolls, parking) associated with attending out-of-District meetings during the 2022-2023 contract year.
 - Ms. Taylor will not be eligible for any supplemental contracts during the 2022-2023 contract year.
 - Ms. Taylor may be subject to discipline up to and including termination for failure adequately perform the duties of her assignment while working, for violation of Board Policy, misconduct, or other good and just cause.

3. The Board shall maintain Ms. Taylor's existing level of benefits through August 31, 2023. Ms. Taylor shall then be entitled to continuation of coverage under the District's health/medical insurance plan pursuant to any rights she may have under the federal Consolidation Omnibus Budget Reconciliation Act, as amended ("COBRA"), part VI of Subtitle B of Title I of the Employee Retirement Income Security Act of 1974 ("ERISA"), as amended, Internal Revenue Code § 4980(B)(f). Such continuation shall be afforded up to the maximum period provided by law, so long as Ms. Taylor submits timely payments for elected coverage and otherwise complies with conditions of continuation on a timely basis.
4. The Parties agree that Ms. Taylor shall continue to accrue sick and personal leave during the 2022-2023 school year and shall be able to convert unused days to sick leave for severance purposes as per the negotiated agreement between the parties upon her August 31, 2023 resignation. Said severance shall be based upon the number of Ms. Taylor's final accrued days at the end of the 2022-2023 school year.
5. Other than what is expressly provided for in this Agreement, Ms. Taylor shall not be entitled to any other severance, compensation, payment, or fringe benefit of any sort whatsoever upon her retirement, regardless of any contract, policy, provision of the Ohio Revised Code, and/or other rules and regulations. Further, Ms. Taylor expressly waives any claim of entitlement to same.
6. Ms. Taylor agrees not to seek any future employment in the District or any other position that may cause Ms. Taylor to perform services of any nature for or in connection with the District.
7. In consideration of the mutual promises set forth in this Agreement, Ms. Taylor, on her own behalf and on behalf of her executors, heirs, administrators, agents, successors, assigns and personal representatives, does agree to release, hold harmless, and forever discharge, to the fullest extent permitted by law, the Board, its officers, members, employees, agents, successors, assigns, and representatives in both their individual and official capacities from any and all causes of action, claims, suits, actions, complaints, demands, damages, expenses (including attorneys' fees and costs actually incurred), and liabilities of any kind, nature or description, whether direct or indirect, in law or in equity, whether now known or unknown, and from continuing effects therefrom, including any and all claims that Ms. Taylor now has or may have as of the date of execution of this Agreement, arising or growing out of, resulting from, or in any way related to the employment of Ms. Taylor by the Board and Ms. Taylor's separation from service. This release includes, without limitation, any and all claims arising under any federal, state, local or common law, including but not limited to any claim in tort, contract or equity, regardless of its nature, breach of contract, invasion of privacy, retaliation, or any claim arising under any equal employment or civil rights law, including but not limited to Title VII of the Civil Rights Act, the Equal Pay Act, the Family and Medical Leave Act, the Americans with Disabilities Act, the Americans with Disabilities Amendment Act, and

the Age Discrimination in Employment Act ("ADEA"), as amended by the Older Workers Benefit Protection Act ("OWBPA").

This release also includes any other claim based on constitutional, statutory, common law or regulatory grounds, which Ms. Taylor, her executors, heirs, administrators, agents, successors, assigns and personal representatives may now have and may now or hereafter assert against the Board, its officers, members, employees, agents, successors, assigns, and representatives in both their individual and official capacities, arising or growing out of, resulting from, or in any way related to Ms. Taylor's employment with the Board and the severance of the employment relationship, whether such claims are now known or unknown. This release further includes any other right to recover monetary relief or any other personal relief through any administrative charge or other claim (this waiver shall not affect any right to file such charge). Ms. Taylor expressly waives her right to file a grievance under the negotiated agreement for the duration of the 2021-2022 school year, and acknowledges that any alleged breach of this Agreement must be raised in a court of competent jurisdiction.

It is the intention of the Parties that the foregoing release be construed as broadly as possible under the law; however, it does not include claims that cannot be waived under the law. This Agreement does not affect Ms. Taylor's right to file a charge or otherwise participate in an Equal Employment Opportunity Commission ("EEOC") or Ohio Civil Rights Commission ("OCRC") proceeding insofar as it is required by current EEOC/OCRC regulations, provided, however, that Ms. Taylor is not entitled to any monetary damages in connection with such proceeding(s). Ms. Taylor understands that the Board will assert this Agreement as a full affirmative defense against any claim asserted by her in any forum. Ms. Taylor also acknowledges and agrees that in the event she breaches any of the terms of this Agreement, she will pay any expenses or damages incurred as a result of said breach, including all costs incurred by the Board, its officers, members, employees, agents, successors, assigns, and representatives, including reasonable attorneys' fees, in defending against any of the claims released in this Agreement.

8. Ms. Taylor and the Association expressly agree to withdraw any pending or threatened grievances. In addition, Ms. Taylor, as well as the Association on behalf of Ms. Taylor, hereby agree not to challenge her separation from employment or file any grievance against the Board, its officers, members, employees, agents and/or representatives with respect to any matter arising from or in any way related to Ms. Taylor's employment, discipline, or separation of employment with the Board, based on facts or events that occurred prior to execution of this Agreement and from continuing effects thereof. Ms. Taylor further agrees to waive any and all rights bestowed upon her by virtue of the Parties' collective bargaining agreement or Chapter 33 of the Ohio Revised Code, including but not limited to any seniority, displacement rights, recall rights, or rights to grieve any subject matter contained in this Agreement. Finally, Ms. Taylor and the Association agree that Ms. Taylor's current position can be posted and filled immediately.
9. Ms. Taylor and her heirs, executors, successors, assigns, representatives, and attorneys shall hold the fact and terms of this Agreement in strict confidence and shall not

communicate, reveal, or disclose the fact and terms of this Agreement to any other persons except to Ms. Taylor's immediate family, to legal counsel, and to tax consultants, all of whom shall be instructed by Ms. Taylor similarly to hold the fact and terms of this Agreement in the strictest confidence, and as otherwise required by law. Ms. Taylor further agrees not to request or to direct or cause any other individual to request this Agreement pursuant to Chapter 149 of the Ohio Revised Code. Further, this Agreement as well as any disciplinary and/or termination documents related to Ms. Taylor in the possession of the District shall be maintained by the District in a separate and different file from Ms. Taylor's personnel file.

10. The Parties agree to refrain from defaming the other Party, its officers, members, employees, agents, representatives, and facilities in any way, including, but not limited to: in person; through handwritten or typewritten correspondence, notes or other documents; through telecommunications; through e-mail communications; and through the use of social media, including, but not limited to, Facebook, Twitter, or any other online message board or social media platform. This Paragraph shall not be construed to extend to Association business and the advocacy for Association members through August 31, 2023.
11. Ms. Taylor agrees to return to the Superintendent any and all Board property of any kind she has in her personal possession, including but not limited to any education records of students who have attended or do attend school in the District (whether in electronic or paper form). The Superintendent shall schedule a date, time, and location by and on which Ms. Taylor must return any and all Board property, such as her District-issued laptop, in her personnel possession to the District, which shall be not later than June 15, 2023.
12. Ms. Taylor understands and acknowledges that she is receiving monies or other consideration that she may not otherwise be entitled to receive by entering into this Agreement, as set forth above, and agrees to the terms set forth knowingly and voluntarily.
13. Nothing contained herein shall constitute an admission of fault of any kind by any of the Parties. This Agreement has been made solely for the purpose of resolving any and all possible disputes regarding the severance of the employment relationship between Ms. Taylor, the Association, and the Board.
14. Ms. Taylor acknowledges and agrees the Board has made no representation whatsoever as to any credits or benefits under the State Teachers Retirement System ("STRS") of Ohio or eligibility for the same. Ms. Taylor acknowledges and agrees that she will consult and rely solely upon her own independent advisors, consultants and attorneys in regard to her eligibility and benefits, if any, under the STRS system.
15. The Parties to this Agreement further acknowledge and agree (a) each has had full and complete opportunity to review and examine the terms of this Agreement and to consult with persons of their choice, including legal counsel, prior to execution of this

Agreement; (b) each has knowingly and voluntarily executed this Agreement and fully understands the rights, duties and responsibilities imposed by the Agreement and intends to be bound by the terms of the Agreement; and (c) there are no other terms, conditions or agreements relating to the subject matters herein set forth aside from the provisions contained in this Agreement. Ms. Taylor acknowledges and agrees that she is responsible for any costs and fees resulting from her attorney reviewing this Agreement.

16. Ms. Taylor acknowledges and agrees the Board has permitted her at least twenty-one (21) days to consider the execution of this Agreement to ensure that Ms. Taylor's execution of this Agreement is knowing and voluntary. In signing below, Ms. Taylor expressly acknowledges that she has had at least twenty-one (21) days to consider this Agreement and her execution of the same is with full knowledge of the consequences thereof and is of her own free will. Notwithstanding the fact that the Board has allowed Ms. Taylor twenty-one (21) days to consider this Agreement, should Ms. Taylor execute this Agreement before the full twenty-one (21) day period has run, Ms. Taylor certifies by her signature below that she has knowingly and voluntarily waived the right to the full twenty-one (21) days with no pressure by or coercion from the Board to do so and was not induced by fraud, misrepresentation, or any threat to withdraw or alter the benefits provided by the Board herein. The Parties further agree that any modification to this Agreement, whether material or immaterial, does not restart the running of the twenty-one (21) day consideration period. In signing below, Ms. Taylor expressly acknowledges that her execution of this Agreement is with full knowledge of the consequences thereof and is of her own free will.
17. Both the Board and Ms. Taylor recognize and agree that, for a period of seven (7) calendar days following Ms. Taylor's execution of this Agreement, Ms. Taylor may revoke her release of claims under the Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621, *et seq.*, as amended, by delivering written notice of the same to Treasurer, Craig Yaniglos. If Ms. Taylor opts to revoke her consent, no provision of this Agreement shall be legally binding, and the Agreement shall be declared never to have existed.
18. The Parties agree that the invalidity or unenforceability of any provision or part of this Agreement shall not render any other provision(s) or part(s) hereof invalid or unenforceable and that such other provision(s) or part(s) shall remain in full force and effect.
19. This Agreement shall be governed under the laws of the State of Ohio. The Parties understand and agree that any dispute arising from, growing out of, or in any way relating to this Agreement shall be filed in the state or federal courts of Ohio. In addition, the Parties reserve the right to bring legal action to enforce the terms of this Agreement.
20. This Agreement shall not set any precedent in any future situation that may arise between the Board and the Association, nor shall it be referred to or cited in any fashion in any other dispute or disagreement between the Board and Association, except to the

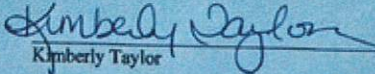
extent the dispute or disagreement relates solely to the enforcement of the terms of this Agreement.

21. This Agreement together with any amendments hereto shall be binding upon and shall inure to the benefit of the Parties hereto and respective successors, assigns, heirs, and personal representatives, except that the rights and benefits of Ms. Taylor under this Agreement are personal in nature and may not be assigned without prior consent of the Board.
22. The Parties commit and agree that this Agreement represents the entire understanding and agreement among the Parties, and there are no understandings or agreements between the Parties other than those specifically and particularly set forth in this Agreement. The terms of this Agreement are intended to be enforced as here written to the maximum extent permitted by law, and, if any provision herein is deemed invalid or unenforceable, the remaining provisions shall continue in full force and effect and constitute the Agreement.
23. This Agreement shall not be amended or modified in any manner except upon written agreement signed by the Parties.
24. This Agreement may be signed in counterpart originals and may be delivered by facsimile or email (in "pdf" form).

In witness whereof, and intending to be legally bound hereby, the following individuals have affixed their signatures hereto:

FOR MS. TAYLOR:

Date: 5-12-2022


Kimberly Taylor

FOR THE ASSOCIATION:

Date: _____

Bonnie Monteleone
President, Brecksville-Broadview Heights
Education Association

Date: _____

Tad Colbeck,
Labor Representative, Brecksville-Broadview
Heights Education Association

FOR THE BOARD:

Date: _____

Mark Dosen
Board President
Brecksville-Broadview Heights City School
District

Date: _____

Joelle Maygar
Superintendent
Brecksville-Broadview Heights City School
District

Date: _____

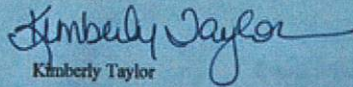
Craig Yaniglos
Treasurer
Brecksville-Broadview Heights City School
District

May 3, 2022

To: Brecksville-Broadview Heights City School District Board of Education
From: Kimberly Taylor

Please accept this notice of my intention to retire from my position as a teacher, and from any and all contracts, including supplemental contracts, with the Brecksville-Broadview Heights City School District Board of Education effective at the close of business August 31, 2023. I have enjoyed working with the Brecksville-Broadview Heights City School District students, staff, and community.

Sincerely,

A handwritten signature in dark ink, appearing to read "Kimberly Taylor", with a long horizontal flourish extending to the right.

Kimberly Taylor

Reference Letter

To Whom It May Concern:

Kimberly Taylor was employed as a full-time teacher with the Brecksville-Broadview Heights City School District from _____ through August 31, 2023. Her salary at the time of her resignation was \$_____.

Regards,

[Name of District Representative]